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General Comment

Please see the attached letter from the Center for Telehealth and e-Health Law.

Attachments

CTeL Response to AI Action Plan RFI

Submitted by the Center for Telehealth and e-Health Law

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RE: Request for Information on the Development of an Artificial Intelligence (AI) Action Plan

Artificial Intelligence (AI) is poised to transform healthcare—improving patient outcomes, reducing administrative burdens, and enhancing clinician workflows. However, without cohesive federal leadership, the U.S. risks a fragmented regulatory landscape that could stifle innovation and limit AI’s full potential. The Administration must prioritize a robust AI Action Plan that fosters responsible innovation while protecting patient rights.

The Center for Telehealth and e-Health Law (CTeL) is a 501(c)(3) non-profit research institute dedicated to advancing the legal and regulatory understanding of digital health. In 2024, we established the AI Blue Ribbon Collaborative, a distinguished panel of experts evaluating clinical and legal questions surrounding AI. Below are key priorities for health AI that align with the **Bipartisan House Task Force Report on Artificial Intelligence (December 2024)**, underscoring the growing consensus on effective AI policy.

1. **Recognize AI’s Diverse Use Cases to Ensure Effective Regulation:** ‘Health AI’ is not a single uniform technology, but rather an umbrella term that covers a range of uses from clinical to administrative.
2. **Prepare Healthcare Professionals for AI Integration:** Healthcare workers should be equipped with the ability to adapt to emerging health technologies and how they interact with existing professional, ethical, and clinical guidelines.
3. **Support the Deployment and Integration of Health AI Technologies:** The federal government should give health organizations the tools and guidance needed to effectively use health AI tools. Establish a National AI Technical Assistance Program to guide healthcare providers in AI adoption.
4. **Ensure that Patients are not Excessively Denied Care:** AI should not be used to excessively deny Medicare or Medicare Advantage claims or prior authorization requests. AI must not become a barrier to care. The use of AI in claims processing and prior authorization should prioritize patient access and fairness, preventing

unjust denials of necessary treatments. Mandate transparency in AI-driven claim denials, requiring insurers to disclose when AI was used.

- 5. Promote Patient Choice and Public Awareness of Health AI:** Patients should be equipped with a basic understanding of AI in healthcare to provide informed consent to its use or have the choice to opt-out.

Recognize AI's Diverse Use Cases to Ensure Effective Regulation

Currently, AI is predominantly being used in administrative tasks, allowing clinicians to spend more time focusing on patient care. AI-powered scribes help take visit notes, which patients appreciate seeing their doctor more focused on them than on note-taking. Doctors can use AI to quickly draft standard follow-up notes to patients and analyze patient health data. These applications are important given the prevalence of administrative burden and clinician burnout currently faced by healthcare workers, factors which threaten the quality of patient care. Clinical applications of AI are also seeing growth in development and usage. Tools and algorithms are being used to [predict](#) heart disease, the progression and [management](#) of chronic conditions, the probability of care needing to be [escalated](#) within a hospital, and many other important factors. Given the wide variety of use cases for AI in the healthcare setting, the Administration should:

- 1. Differentiate between health AI use cases, such as administrative, clinical, billing, and others, and take into consideration differing risk profiles for patient safety and data security.**
- 2. Identify top challenges currently facing the American healthcare system, such as workforce shortages, administrative burden, rising costs, and data security, and develop strategies for how AI and other future technologies can address them.**

A recent [survey](#) from the American Medical Association (AMA) found that physicians are growing in their excitement over health AI, with addressing administrative burden being the biggest opportunity for the technology.

3. Anticipate the potential for Artificial General Intelligence (AGI) and its impact on healthcare.

All current uses of AI are considered “narrow,” in that they are designed for and applied to a specific use case. Technologists predict the eventual invention of AGI, which would be an AI system that can adapt to new situations. Such technology would necessitate the development of standards and measures to evaluate model performance and proper oversight measures.

Prepare Healthcare Professionals for AI Integration

The pace of technological development demands that health workers quickly adapt to new ways of caring for patients. From electronic health records to telehealth to robotics and now AI, health technologies have empowered clinicians to provide higher-quality, more accessible care. It is important that clinicians [balance](#) the need to take advantage of new technologies like AI to improve patient care, while also being able to critically assess inputs. It is also important that any use of AI avoid exacerbating already-existing problems straining the healthcare workforce, such as staffing shortages, administrative burden, clinician burnout, and independent decision-making ability.

1. Patients deserve competent clinicians who can provide the best level of care.

Collaborate with clinician training programs and professional societies to develop professional standards for AI competency that can be incorporated into clinical training programs as well as continuing education materials.

For example, a 2023 [study](#) highlighted six key standards for assessing clinician competency with AI:

- a. Basic knowledge of AI, which involves understanding AI and its healthcare applications

- b. Social and ethical implications of AI,
- c. AI-enhanced clinical encounters, which emphasizes integrating diverse sources of information to create patient-centered care plans using AI tools,
- d. Workflow analysis for AI-based tools, which involves analyzing and adapting to changes in teams, roles, and responsibilities due to AI tool implementation; and
- e. Practice-based learning and improvement regarding AI-based tools, which encourages ongoing professional development related to the use of AI tools in healthcare

It is also important to emphasize that this field is rapidly evolving – what is ‘standard’ now may not be standard a few years in the future. Any standards development should be adaptive to changes in the healthcare system and should not be weaponized against clinicians and/or subvert clinical judgement.

2. Encourage healthcare organizations to involve their workforce throughout the AI lifecycle.

Successful deployment of new technologies like AI can revolutionize the way hospitals and other healthcare settings operate, necessitating buy-in from all those involved in using them.

3. Protect clinicians and patients by supporting the development of liability standards surrounding AI use.

Numerous healthcare organizations emphasize the importance of AI as a tool to *augment* clinician performance while preserving the centrality of clinician judgement in medical decision-making. In instances where mistakes are made, guidance on liability would ensure that there is a clear level of accountability for clinicians and safety measures for patients.

Support the Deployment and Integration of Health AI Technologies

The federal government already plays an important role in supporting the use of health technology through HHS' Assistant Secretary for Technology Policy office. This office serves as a leader in promoting health record interoperability, allowing for the seamless transfer of patient information for more integrated care. It also provides tools and support for healthcare organizations in adopting innovative health technologies through targeted technical assistance measures, paving the way for new care innovations.

AI presents unique challenges in its adoption due to the complexities of the technology. Cost is currently one of the biggest challenges – we hope the Administration's efforts to reduce the cost of AI will allow smaller, more rural hospitals to take advantage of this technology. Other factors, such as performance evaluation and workflow integration, require technical skills that many health organizations lack. We encourage the Administration to be a leader in this area – widespread adoption of AI creates new opportunities for innovation that could improve patient care. Specifically, there are a few areas that federal guidance would be beneficial:

1. Resources to assist healthcare organizations in the selection, procurement, deployment, management, and evaluation of health AI tools

Many health organizations have developed systems for AI monitoring and evaluation that should be considered to serve as potential models for others still developing their infrastructure. ASTP for example has dozens of resources to assist providers in selecting and implementing electronic health record (EHR) systems, including training and quality improvement materials. Federal support would go a long way in helping practices confidently adopt and utilize health AI systems.

2. Guidance to providers on appropriate coding and billing for AI-assisted services. Proper payment of these services ensures that providers can invest in these technologies.

Current Procedural Terminology (CPT®) is a set of codes used to identify and bill for medical services. New codes are regularly added and modified to account for the introduction of new procedures, including for AI-enabled procedures. Regardless of the introduction of new codes to describe procedures, Medicare, state Medicaid programs, and private insurers must still determine if and under what circumstances they will pay for them. CMS should issue guidance on what AI-enabled procedures are eligible for Medicare reimbursement to assist providers in making technology investment determinations.

Furthermore, to protect patient access, we urge CMS to:

- *Issue clear guidance on AI's role in utilization review, ensuring that human reviewers maintain independent decision-making authority.*
- *Mandate transparency requirements for insurers using AI in the prior authorization process, including disclosure of AI-driven denials.*

Ensure that Patients are not Excessively Denied Care

Insurance plans are increasingly using AI algorithms to evaluate requests for prior authorization – an insurer's determination of a procedure/medication's 'medical necessity.' In October 2024, the Senate Permanent Subcommittee on Investigations released a [report](#) detailing how Medicare Advantage plans were [using](#) AI technologies “to [fix](#) lengths of stay for patients at various inpatient facilities, and in some cases to [determine](#) whether those patients should be admitted at all.”

- 1. CMS should issue guidance on the appropriate use of AI in the utilization review process, ensuring that human reviewers are not unduly influenced by algorithms.**
- 2. CMS should require Medicare Advantage plans to disclose their use of AI in the prior authorization process, including whether AI was used to issue a denial.**

Indiana, for example, is considering a [bill](#) requiring the disclosure of the use of AI in any medical or insurance decision-making.

Promote Patient Choice and Public Awareness of Health AI

Informed consent is a [fundamental](#) component of the practice of medicine – patients have a right to understand the risks, benefits, and alternatives of a procedure and to provide, withdraw, or refuse consent to a procedure at any time. This is especially important when it comes to AI given the complex nature of many of these algorithms. We strongly encourage the Administration to make patient rights and autonomy a central part of the AI Action Plan and recommend the following policies:

- 1. Collaborate with the Centers for Disease Control, Food and Drug Administration, Indian Health Service, Veterans Affairs Administration, and other federal, state, and local public health agencies to develop a campaign educating the public on the basics of AI in health**
- 2. Develop materials and guidance for clinicians to explain to patients if, when, and how AI is being used for their care**

Conclusion

CTeL urges the Administration to act decisively in crafting an AI Action Plan that fosters responsible innovation while protecting patients. We stand ready to collaborate and provide expert guidance. For further discussion, please contact us at [REDACTED]

